

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	08-07-2026 16:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	08-07-2026 16:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Gujarat
विभाग का नाम/Department Name	Education Department Gujarat
संगठन का नाम/Organisation Name	Commissionerate Of Technical Education
कार्यालय का नाम/Office Name	Government Engineering College, Sector-28, Gandhinagar
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: nkprajapati@gecg28.ac.in
कुल मात्रा/Total Quantity	1
वस्तु श्रेणी /Item Category	Digital Duplicators (V4) (Q2)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No

बिड विवरण/Bid Details	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन / Past Performance	50 %
बिड से रिवर्स नीलामी सक्रिय किया/ Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/ RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/ Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/ Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/ Arbitration Clause	No
सुलह खंड/ Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	14

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /**Beneficiary :**

Principal

Government Engineering College, Sector-28, Gandhinagar, Education Department Gujarat, Commissionerate of Technical Education,

(Principal Government Engineering College Sector-28 Gandhinagar)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	20
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

2. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.

3. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

4. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry/ State of Bid Inviting Authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 20% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to

Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry. Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

5. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

6. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 50% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

7. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Digital Duplicators (V4) (1 pieces)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Performance / Functional	Paper Feed Tray Stacking Capacity	1000 or better
	First Print Time /Stencil making time (Second) hint: lesser the Print Time is generally consider the better	20 or Lesser Or higher
Scanner	Scanning Method	Flatbed scanner(book top)
	Scanning Resolution (Dots per inch)	600 x 600 Or higher
Buyer Specific Requirements	Type of Machine	Single Drum
	Printing Colour	Mono Colour
	Interface/ Ports	USB2.0
Warranty and Services	Warranty	1 year, 2 years, 3 years, 4 years, 5 years Or higher

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Prajapati Ashvinkumar Rameshbhai	382028,GOVERNMENT ENGINEERING COLLEGE NEAR ANIMAL VACCINE INSTITUTE, SECTOR-28, GANDHINAGAR	1	15

Special terms and conditions-Version:1 effective from 22-11-2024 for category Digital Duplicators (V4)**1. Note to Buyers:**

The Central Ministries/ Departments and other government buyers, as applicable, shall note that this category is covered under Scheme - II (Compulsory Registration Scheme) of BIS (Bureau of Indian Standards).

Compulsory registration of goods / articles in this category shall conform to IS 13252 (Part - 1) : 2010 and shall bear the "Standard Mark" under a license from Bureau of Indian Standards as per Scheme-II of Schedule-II of Bureau of Indian Standards(Conformity Assessment) Regulations,2018.

Buyer shall verify and confirm compliance with the applicable BIS order during the procurement and fulfilment process.

Note to Sellers:

Sellers shall offer and supply products conforming to the corresponding Indian Standard and mandatorily registration as per Scheme-2 of BIS.

Non-compliance shall result in action as per GeM IM policy.

Buyers and sellers may refer to the relevant S.O at <https://www.bis.gov.in/product-certification/products-under-compulsory-certification/scheme-ii-registration-scheme/>

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Government Engineering College Gandhinagar
Nr Animal Vaccine Center
GEB Cross Road
Sector-28
Gandhinagar 382028
.

3. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. **Generic**

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 3 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

5. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

6. **Generic**

Experience Criteria: The Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for 3 years before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the year. In case of bunch bids, the primary product having highest value should meet this criterion.

7. **Generic**

Installation, Commissioning, Testing, Configuration, Training (if any - which ever is applicable as per scope of supply) is to be carried out by OEM / OEM Certified resource or OEM authorised Reseller.

8. **Generic**

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

9. **Generic**

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

10. **Turnover**

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

11. **Turnover**

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

12. **Forms of EMD and PBG**

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Principal Government Engineering College Sector-28 Gandhinagar
payable at
Gandhinagar

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

13. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

Principal Government Engineering College Sector-28 Gandhinagar
payable at
Gandhinagar

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

14. **Service & Support**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

15. **Service & Support**

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

16. **Warranty**

Timely Servicing / rectification of defects during warranty period: After having been notified of the defects / service requirement during warranty period, Seller has to complete the required Service / Rectification within 3 days time limit. If the Seller fails to complete service / rectification with defined time limit, a penalty of 0.5% of Unit Price of the product shall be charged as penalty for each week of delay from the seller. Seller can deposit the penalty with the Buyer directly else the Buyer shall have a right to recover all such penalty amount from the Performance Security (PBG).Cumulative Penalty cannot exceed more than

10% of the total contract value after which the Buyer shall have the right to get the service / rectification done from alternate sources at the risk and cost of the Seller besides forfeiture of PBG. Seller shall be liable to re-imburse the cost of such service / rectification to the Buyer.

17. **Past Project Experience**

The Bidder / OEM {themselves or through reseller(s)}, should have executed project for supply and installation / commissioning of same or similar Category Products during preceding 3 financial years (i.e. current year and three previous financial years) as on opening of bid, as per following criteria:

- (i) Single order of at least 35% of estimated bid value; or
- (ii) Two orders of at least 20% each of estimated bid value; or
- (iii) Three orders of at least 15% each of estimated bid value.

Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid. In case of bunch bids, the Category related to primary product having highest bid value should meet this criterion

18. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

19. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

Government Engineering College, Sector 28, Gandhinagar

Additional Terms and Condition for Bidder/ Buyer Added text based ATC clauses

This Bid is for Gujarat State, so out-of-Gujarat State parties/agencies must refer to the latest "Gujarat State Procurement Policy 2024," Resolution No. SPO 102021-188460-CH, dated 14/03/2024 circular and then take part in this Bid.

Out-of-Gujarat State parties/agencies participating must have a registered branch office in Gujarat State for contact/communication and to solve issues during warranty and related services provided by the agency.

The party must upload only GeM portal work orders for experience criteria, CA certificate on turnover or IT return, OEM, etc., for the data given in the bid documents.

The bidder should submit a certificate duly accepting all terms & conditions and product dimensions and design with duly sign or stamp and upload the same in participating bid documents.

The bidder should submit GST registration, latest returns, copy of PAN card. The bidder needs to provide Annexure A to E with duly signed and stamped by the authority on letterhead.

Buyer has reserved rights to award or cancel the bid at any stage. Decision of the Government Engineering College Gandhinagar Sector-28 Authority is final and no correspondence will be entertained thereafter.

The bidder must arrange to deliver their product at various departments of this institute. "Principal, Government Engineering College, Sector-28, Gandhinagar" Reserves all the rights to accept or reject any or all tender bids without assigning any reason.

The bid estimated value is Rupees (₹) 4,99,450=00. Bidders have to submit Rupees (₹) Demand 14984=00 as an EMD of 3% of the total estimated cost of tender/bid value with Account Payee Demand Draft/FDR in favor "Principal, Government Engineering College, Sector-28, Gandhinagar" payable at Gandhinagar.

The EMD will be released after order for other than qualified bidders. For qualified bidders, will be released after successful receiving and on inspection, items found requirements.

Procurement from Start-ups: A. Start-ups recognized by DPIIT under the Start-up India Program and having Udyam Registration Certificate as well as registration with CSPO or National Small Industries Corporation as an MSE.

Technical Compliance: Bidders must provide a comparative technical compliance sheet(s) point/item-wise by mentioning make/model/specifications of the quoted items along with the detailed specifications of the item mentioned in the bid.

Requisite catalogues/information/website links of the quoted items must be submitted in the technical bid.

The technical specifications of the quoted items should match with public domain data sheets or bidder's official website for verification/evaluation.

Supporting documents of product(s)/item(s) (model, make, major specifications, and OEM/manufacture) must be provided by the bidder/seller. The authorized reseller/authorized supplier must provide a certificate issued from the OEM. Actual photograph(s) of product(s)/item(s) along with necessary details, specifications, and model must be provided by the bidder. It is mandatory to comply with the whole bid document with authorized signature and stamp.

Registered Office or Service Centre: The bidder must have a registered office or service centre or franchise in the local state (Gujarat). The bidder must provide the legal proof of registration certificate/related documents for the same. Full contact details of the office must be provided for cross verification. The uploaded documents should be authentic, genuine, and relevant to the bid requirements. They will be verified by all means. If any document is The Head of Institute reserves the right to reject one or all items which may be found to be of inferior quality and/or not as per our requirement. Such items will be sent back to you, and transportation cost will have to be borne by the bidder, if any. All other general terms and conditions of GeM will be applicable.

ePBG: ePBG should be of Nationalised Bank in favor of Principal Government Engineering College Sector-28 Gandhinagar payable at Gandhinagar as per GeM format.

Bidder/OEM Turnover Criteria: The minimum average annual financial turnover of the bidder/OEM during the last three years, ending on 31st March of the previous financial year, should be twice of the estimated price of equipment. Documentary evidence in the form of certified audited balance sheets of relevant periods or a certificate from the Chartered Accountant/Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution/incorporation of the bidder is less than 3 years old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. The documentary evidence of turnover in the form of certified audited balance sheet of relevant period and turnover certificate must be certified by Chartered Accountant (CA). Bidders must provide a CA certificate of their turnover. Last 3 years average turnover should not be less than requirement. This turnover must be OEM & CA certified. (Annual turnover value will be applicable as per Gujarat State Procurement Policy 2024, Industries & Mines Department, Resolution No : SPO 102021-188460-CH dated 14-03-2024.) The average turnover of the bidder/seller should be at least 2 times or more of the bid's estimated value/estimated value of quoted item(s)/product(s).

The bidder has to accept both the specifications (as per GeM category specification) and additional specification parameters added by the buyer and submit the documents with firm's signature and stamp for submission of technical offer in the bid.

EMD exemption:

For EMD exemption of MSES & Startups as mentioned in Procurement Policy point no.4(A)

a) Micro & small-scale enterprises which participate directly in tendering process for the product which they are manufacturing / service which they are providing and have Udyam registration for items / service under procurement and having registration with CSPO or National Small Industries Corporation.

b) Startups which participate directly in tendering process for the product which they are manufacturing / service which they are providing and recognised by DPIIT under the Start-up India Program and has obtained Udyam registration & CSPO/NSIC registration as MSE.

c) Organization which has registration certificate for the manufacturing product of the tender, from Gujarat Khadi Gramodyog Board or Khadi and Village Industries Commission (K.V.I.C) or Commissioner of Cottage Industries.

d) Board/Corporations/PSUs of the Central/State Government for their own manufactured items.

e) State Government recognized organizations like (i) organizations for blinds, dumb and deaf, disabled, mentally disabled persons; (ii) women's self-help group recognized by Gujarat Livelihood Promotion Company; which participate directly in tendering process for the product which they are manufacturing / service which they are providing.

f) Sellers who have got their credentials verified through the process of Vendor Assessment by Vendor Assessment Agencies through GeM for the Primary Product/Primary Service for which Bid/RA floated on GeM.

g) In keeping with GeM guidelines, OEM and service providers rendering services directly or by its own and having annual turnover of INR 500 Crore or more.

The bidders are advised to upload the required documents in pdf format, duly signed and stamped by the authorized person. No new documents will be accepted after bid closing date, it is mandatory for all the bidders to submit a catalogue/datasheet containing details of the items such as specifications, pictures of the product, brand etc. which clearly specifies the specification of the product. In case of any ambiguity/ misinformation / misrepresentation, it may lead to rejection of the bid. Final authority is the buyer department for accepting/rejecting any bidder or any related decision regarding this bid.

Even if a bidder meets the eligibility or qualification criteria, it shall be subject to disqualification if it or any of its constituting elements / partners / entities is found to have:

- 1) Made misleading or false representations in the forms, statements, affidavits and attachments submitted in proof of the qualification requirements.
- 2) Proposal not submitted in accordance with this tender.
- 3) During validity of the proposal, or its extended period, if any, the bidder changes his commercial terms.
- 4) The tender documents received are not duly signed by authorized person.
- 5) The validity of tender is less than what is stated in the tender.

The successful bidder shall not assign or subcontract any portion of the work under this tender.

Service Provider's Obligation

- (a) The successful bidder shall not assign or subcontract any portion of the work under this tender.
- (b) Bidders shall not have any dispute or claim for any compensation if the quantity stipulated in the tender items varies or the scope of work changes and thereby the total amount of work increases or decreases, or if the work gets delayed or postponed for any reason whatsoever.
- (c) From commencement to completion of the work/contract as a whole, the product/service provider shall take full responsibility for the care thereof and for taking precautions to prevent loss or damage. He shall be liable for any damage or loss that may happen to the works or any part thereof.
- (d) The service provider/ bidder shall indemnify and keep indemnified the Authority against all losses and claims for death, injuries, or damage to any person or any property whatsoever which may arise out of or in consequence of the construction and maintenance of works and also against all claims, demands, proceedings, damages, costs, charges, and expenses whatsoever in respect of or in relation thereto, and such liabilities shall include claims/compensations of the third party.
- (e) The service provider/ bidder shall have full regard, throughout execution, completion, and defects liability period, to following safety aspects and shall take all necessary steps to ensure that danger to safety is avoided all the time in respect of the safety of the works, the safety of the service provider's employees, and all the persons directly or indirectly engaged by him for the works.
- (f) The service provider/ bidder and its employee have to strictly follow the instructions governed by authority related to safety.
- (g) The service provider/ bidder has to be obliged to reimburse the losses caused directly or indirectly to the property or to any equipment, material, or service, including wires, pipelines, government records, or the belongings of officers or employees, or any loss due to the service provider's incompetence, negligence, willfulness, or for any other reason.
- (h) The service provider/ bidder shall be responsible for compliance with all government laws regarding the provision of persons, and the organization shall not be liable for the same under any circumstances.

Delivery, Payment & Penalty Terms

- (a) Successful bidder has to deliver the product at different consignee locations as mentioned.
- (b) No advance payment shall be made against the award of contract to the supplier.
- (c) The bidder /service provider has to generate invoices on the GeM portal.
- (d) Payment will be made only after submission of a satisfactory service/Inspection/Installation report duly signed and stamped by the buyer's nominated authorized person/Agency. Non-submission of the same may lead to delay or deduction in payment.
- (e) Payment will be made after deduction of all applicable taxes, deductions/fines, and interest (if applicable).
- (f) The service provider shall not have any objection on the same.
- (g) Any violation of contractual obligations by the service provider/bidder shall attract deductions as mentioned against each obligation. The service provider/ bidder confirms and agrees that penalty whenever becomes payable, the same shall be deducted from the payments due to the service provider/bidder.

- (g) Payment will be made through bank transfer only; in no circumstance, cash or check payment will be made.
- (h) The institute will levy a penalty of 0.5% per week for delayed delivery of goods to respective consignee. If the penalty amount reaches 10% of the total value of the bill, the contract will be cancelled and the security deposit will be forfeited. Buyer may also blacklist the service provider/ bidder in this case.

20. Purchase Preference (State)

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 20 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

21. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

22. Generic

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such

Custom / BOQ item is bunched with the major regular product Category Item).

2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service

Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---